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## **Contractor's Detailed Particulars — Pier P3 Utility Conflict Delay**

Nandira River Bridge Project — Package NRB-4

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|----------------------------|-------------------------------------------------------------|
| <b>Document Reference:</b> | CTR-NRB4-0028                                               |
| <b>Date:</b>               | 24-Mar-2021                                                 |
| <b>Contract No.:</b>       | NHIA/NRB4/CW/2020-01                                        |
| <b>From:</b>               | Contractor, Project Manager, Sagara Constructions Pvt. Ltd. |
| <b>To:</b>                 | Engineer, Meridian Engineering Consultants                  |

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### **Subject: Detailed Particulars in Support of Notice CTR-NRB4-0021 — Pier P3 Utility Conflict**

In accordance with Sub-Clause 20.1 and further to our Notice CTR-NRB4-0021 dated 10-Feb-2021, we submit the following particulars in support of our claim for an extension of the Time for Completion.

1. **EVENT:** Discovery on 28-Jan-2021 of an undisclosed 132kV tower foundation within the Pier P3 excavation footprint (DPR-0128-2021), confirmed by Vantara Power Grid Corporation on 05-Mar-2021 (VPGC-NRB4-0012) as requiring relocation, with an estimated relocation duration of 14 weeks from commencement.
2. **CONTRACTUAL BASIS:** Sub-Clause 8.4(c), the event being attributable to the completeness of utility information provided with the tender documents, and not a risk allocated to the Contractor under the Contract or the Employer's Requirements.
3. **PROGRAMME IMPACT:** Pier P3 substructure works, on the critical path for completion of the river crossing, have been suspended since 28-Jan-2021 per Site Instruction SI-NRB4-014. While resequencing under SI-NRB4-014 has allowed continued progress at Piers P1, P2, P4 and P5, our programme analysis indicates that the Pier P3 suspension will, absent full mitigation, translate into a net critical path delay to Substantial Completion once the relocation is complete. We will submit a final assessment of the net delay once the relocation is finished and Pier P3 works can resume, in accordance with Sub-Clause 8.4.
4. **RECORDS MAINTAINED:** Site diary entries, Daily Progress Reports, and correspondence with Vantara Power Grid Corporation, all available for the Engineer's inspection.

We confirm this submission is made without prejudice to further particulars as the effects of this event continue, and we will update the Engineer at monthly intervals as required by the Contract.

Regards,  
Project Manager

Sagara Constructions Pvt. Ltd.